

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cordell Hackshaw	Team: Team # 3	CCRB Case #: 200809233	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/17/2008 11:00 AM	Location of Incident: Park Avenue and East 161st Street	18 Mo. SOL 12/17/2009	Precinct: 44		
Date/Time CV Reported Tue, 06/24/2008 11:57 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 06/24/2008 11:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Klein	28772	936874	044 PCT
2. POM James Cruger	21311	929965	044 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Rivera	09893	939319	044 PCT
2. POM Robert Taylor	17468	929241	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Klein	Discourtesy: PO Robert Klein spoke obscenely to § 87(2)(b)	A . Unsubstantiated
B . POM James Cruger	Abuse: PO James Cruger searched the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Robert Klein	Abuse: PO Robert Klein searched the car in which § 87(2)(b) was an occupant.	C . Exonerated
D . An officer	Abuse: An officer damaged § 87(2)(b) s car.	D . Officer(s) Unidentified

Synopsis

§ 87(2)(b) filed this complaint on June 24, 2008 in person at the Civilian Complaint Review Board (CCRB). § 87(2)(b) stated that at approximately 11:00 AM on June 17, 2008, he was driving with a friend, § 87(2)(b) along Park Avenue and East 161st Street in the Bronx. § 87(2)(b) had his music on and drove past a marked police van in which there were four officers, identified through investigation as PO Robert Klein, PO Jonathan Rivera, PO James Cruger and PO Robert Taylor. When § 87(2)(b) drove by, the officers indicated to § 87(2)(b) to pull over. § 87(2)(b) stated that during his interaction with the officers, PO Klein told him, “Turn that shit off!” in reference to his playing his music and “You can look at my badge number. I don’t give a fuck” (**Allegation A**). After this, § 87(2)(b) threw a straw that he had in his mouth at PO Klein and proceeded to exit his car despite PO Klein’s command for him to stay inside. § 87(2)(b) was arrested for § 87(2)(b). § 87(2)(b) refused to provide any identification to PO Klein and thus § 87(2)(b)’s car had to be taken into custody for safekeeping. § 87(2)(b) then alleged that officers, determined through investigation to be PO Cruger and PO Klein, searched his car without probable cause (**Allegations B and C**). § 87(2)(b) added that as a result of the search, his car sustained damage to the back seat leather upholstery covering and the horn on the left side (**Allegation D**).

§ 87(2)(g) it is recommended that Allegation A be closed as *Unsubstantiated*. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations B and C be closed as *Exonerated*. It is recommended that Allegation D be closed as *Officer(s) Unidentified* as § 87(2)(b) was unable to identify the officer(s) who allegedly damaged his car.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b)-old black male who is § 87(2)(b). § 87(2)(b) provided one statement in regards to this incident when he provided an official statement in person at the CCRB on June 24, 2008 (**Encl. B3-B6**).

On June 17, 2008, at approximately 11:00 AM, § 87(2)(b) left his home at § 87(2)(b) on his way to East 149th Street and 3rd Avenue in the Bronx to get his cell phone repaired. He was driving his 1995 green Acura Legend with his friend § 87(2)(b) in the passenger seat. After driving about 4 blocks away from his home, § 87(2)(b) saw a marked NYPD van with four male officers inside near the vicinity of Park Avenue and East 161st Street. The van was in front of § 87(2)(b)’s vehicle. § 87(2)(b) was playing “ole-school reggae” at a “minimum” amount of volume. § 87(2)(b) explained that although the music was audible to others who were outside of the vehicle, it was not blasting. Several of the officers looked back at § 87(2)(b). The driver of the van pulled to the side allowing § 87(2)(b) to drive up to the stop sign. § 87(2)(b) turned down the music as he drove past the paddy wagon. § 87(2)(b) looked into his rearview mirror and saw that the van was now driving up behind him. The lights of the van began to flash, and so § 87(2)(b) pulled to the side.

An officer, identified through investigation as PO James Cruger, got out of the van and approached § 87(2)(b) on the driver’s side. § 87(2)(b) described PO Cruger as a white male, chubby with no facial hair. He asked § 87(2)(b) for his driver’s license and registration. Another officer, PO Jonathan Rivera whose name and badge number § 87(2)(b) read from his name plate and badge, came to the car and asked § 87(2)(b) for the spelling of his first name, as it was not written on the driver’s license. § 87(2)(b) asked PO Rivera, why he was being pulled over. PO

Rivera told him that his music was too loud and then returned to the paddy wagon. A third officer who § 87(2)(b) described as being approximately 25-28 years old, 6'2"-6'3", 210-215 lbs, white male with dark blond hair and no facial hair, 25-28 years old came up to the driver side. § 87(2)(b) stated that this officer's badge number was 28772, which was later determined through investigation as being the badge number of PO Robert Klein. PO Klein told § 87(2)(b) that he was being pulled over for loud music and that he should "turn that shit off" or else he would confiscate the vehicle. § 87(2)(b) did not recall specifically what PO Klein stated in reference to his car but he stated that he got the implication that PO Klein was threatening to take his car away. There was a straw in § 87(2)(b)'s mouth. He took it out and threw it out of the window while at the same time, expressing to PO Klein that his threat was "bullshit." § 87(2)(b) then opened the car door and picked up the straw from the street.

PO Klein then said to the other officers, "Oh we got another one littering." PO Klein told § 87(2)(b) to get out of the vehicle. § 87(2)(b) was looking at PO Klein's badge number when PO Klein said, "You can take my badge number. I don't give a fuck." As § 87(2)(b) was beginning to write the badge number, PO Klein grabbed § 87(2)(b)'s left arm, twisted it as he spun him around, pushed § 87(2)(b)'s face to the car and then placed him in handcuffs. The handcuffs were extremely tight causing numbness in § 87(2)(b)'s right thumb and index finger. § 87(2)(b) told PO Klein that the handcuffs were too tight. PO Klein took § 87(2)(b) to the van. There was another officer in the van, PO Taylor, whose name § 87(2)(b) read from his name plate. PO Klein then asked PO Cruger for the handcuff keys and then attached another set of handcuffs, which made it more comfortable for § 87(2)(b). PO Klein approached § 87(2)(b) and asked him if he had a driver's license. § 87(2)(b) told the officer that he did not but that he was calling § 87(2)(b)'s girlfriend, § 87(2)(b) to the scene to retrieve the vehicle. PO Klein told § 87(2)(b) that he should tell the person to go to the stationhouse instead. PO Klein got into § 87(2)(b)'s car and drove it to the stationhouse. § 87(2)(b) stated that § 87(2)(b) was searched at the scene by PO Rivera and PO Klein. They both frisked § 87(2)(b) and then placed their hands into his pockets.

§ 87(2)(b) was taken to the 44th Precinct stationhouse. As § 87(2)(b) was in the stationhouse, PO Cruger was outside searching § 87(2)(b)'s car. PO Cruger came back into the stationhouse and spoke to PO Rivera using police jargon. However, it appeared as if PO Rivera at first did not understand PO Cruger. So, PO Cruger made a hand signal indicating that he found a knife. § 87(2)(b) acknowledged that he had a knife in his car but it was in a bucket in the trunk of the car. The knife was about 9-10 inches extended and folded to about 6 inches. PO Klein also searched § 87(2)(b)'s car. § 87(2)(b) did not see either PO Cruger or PO Klein searching his car, but he believed they both searched it. § 87(2)(b) was then searched and placed in a holding cell. § 87(2)(b) stated that he never had a machete in his car. While in the holding cell, § 87(2)(b) was speaking with another prisoner about why he was arrested. The prisoner asked § 87(2)(b) which of the officers brought him in on a "bullshit" charge such as loud music. § 87(2)(b) pointed to PO Klein and said "that jackass right there." PO Klein replied, "This jackass right here. We found that big machete. We're bringing you up on weapon charges." § 87(2)(b) was taken to Central Booking the next day. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)'s girlfriend, § 87(2)(b) retrieved the vehicle from the 44th Precinct. When § 87(2)(b) was released from Central Booking and returned to his car, he found that the horn on the left side was damaged. The part that allowed § 87(2)(b) to use the horn of the car was broken off by one of the officers, but he did not witness this happen. The officers also removed the seats in the car and as a result, they ripped the leather cover of the seat. § 87(2)(b) was also issued four summonses

for VTL violations; § 87(2)(b)

Results of Investigation

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old black female who is § 87(2)(b). § 87(2)(b) She provided one statement in regards to this incident when she was interviewed in person at the CCRB on June 24, 2008 (**Encl. B8-B10**).

On June 17, 2008, at approximately 11:15 AM, § 87(2)(b) received a call from § 87(2)(b) stating that § 87(2)(b) § 87(2)(b)'s boyfriend, was being arrested. § 87(2)(b) told § 87(2)(b) that § 87(2)(b) was being arrested and that she needed to come as soon as possible to get the car. He told § 87(2)(b) that he was in the vicinity of East 163rd Street and Park Avenue. § 87(2)(b) would later call back in a few minutes telling § 87(2)(b) that she had to go to the 44th Precinct stationhouse in order to retrieve the car. As § 87(2)(b) was getting ready to leave the apartment, § 87(2)(b) arrived at the front door. He told § 87(2)(b) why § 87(2)(b) was arrested. § 87(2)(b) also said that officers searched him and asked if he had a gun on him. § 87(2)(b) and § 87(2)(b) a friend of § 87(2)(b) who was visiting from Florida, went to the 44th Precinct. However, only § 87(2)(b) and § 87(2)(b) went into the precinct. A tall "Italian-looking" officer came out and told § 87(2)(b) that § 87(2)(b) was pulled over for loud music, at which point § 87(2)(b) spat a straw into his face. The officer added that § 87(2)(b) was very disrespectful and that they found a machete and a knife in the car. The officers showed the weapons to § 87(2)(b) § 87(2)(b) took the car. § 87(2)(b) stated that the part that one touches to sound the horn was broken off when she entered the car. § 87(2)(b) made no mention of the back seat being damaged.

Attempts to contact Witnesses

As § 87(2)(b) was present in § 87(2)(b)'s car during the incident, the CCRB made several unsuccessful attempts to contact him. § 87(2)(b) had originally stated that § 87(2)(b) did not have a telephone number but he provided an address. The CCRB sent a please call letter to § 87(2)(b) on July 15, 2008. § 87(2)(b) called the CCRB on July 17, 2008 with § 87(2)(b) on the line. § 87(2)(b) provided a very brief statement, stating that he was not searched during the incident. He made an appointment for an official statement on July 22, 2008. However, he never showed up his scheduled appointment. A missed-appointment letter was sent to § 87(2)(b) on July 23, 2008. Neither letter sent to § 87(2)(b) was returned to the CCRB marked as undeliverable. On November 13, 2008, § 87(2)(b) contacted the CCRB and stated that § 87(2)(b) had left the state and that he had no forwarding address. Therefore, the CCRB was unable to procure an official statement from § 87(2)(b).

Identification of Officers Interviewed

During his CCRB interview, § 87(2)(b) identified three officers: PO Rivera by name and badge number, PO Klein from his badge number and PO Taylor by his name. § 87(2)(b) also provided copies of the four summonses that were issued to him. The summonses clearly indicate the names and tax identification numbers for PO Rivera and PO Cruger. Therefore, PO Rivera, PO Klein, PO Cruger and PO Taylor were all interviewed.

PO Robert Klein

Stop, Question and Frisk Report § 87(2)(b) (UF-250) (Encl. D1)

According to this report prepared by PO Klein, he stopped a male at the intersection of East 163rd Street and Park Avenue at approximately 12:05 PM. The reason for the frisk was that PO Klein observed the individual “stuffing” a wallet into his right front pocket. PO Klein noted that the other driver was arrested for criminal possession of a weapon. The male refused to provide any identification.

PO Klein is a § 87(2)(b)-old white male who is § 87(2)(b) with 4 years tenure in the NYPD. He was interviewed at the CCRB on November 13, 2008 (**Encl. C16-C18**). On the date of the incident, PO Klein worked from 7:05 AM to 3:40 PM in the Housing Conditions Unit with PO Jonathan Rivera, PO James Cruger and PO Robert Taylor. They were all dressed in uniform and assigned to marked van #5630. PO Klein had the following memo book entries regarding this incident (**Encl C14-C15**): At 12:00 PM, a car stop at East 163rd Street and Park Avenue. At 12:05 PM, one under arrest by PO Rivera as the perpetrator threw a straw at PO Klein and became very aggressive. A UF-250 was filled out for the passenger as he refused to provide identification. At 12:20 PM, PO Klein observed PO Cruger recover a machete from between the back seat of the perpetrator’s vehicle.

On June 17, 2008, at approximately 12:00 PM, PO Klein was driving from one NYCHA location to another when the van he was traveling in turned off East 164th street onto Clay Avenue. PO Klein did not recall who was driving but noted that PO Rivera, PO Cruger and PO Taylor were also present in the van. On Clay Avenue a car pulled behind the van with a broken windshield and significant amount of smoke coming out of the exhaust pipe, leading PO Klein to believe that the car was burning excess oil. In addition, the car was in a school zone playing loud music with a high level of bass. The car was allowed to pass the RMP and then the lights of the RMP were turned on in order to indicate to the car to pull over. There was a school adjacent to where the car stopped on East 163rd Street and Park Avenue. PO Rivera initially approached the driver who was determined by this investigation to be § 87(2)(b) (Henceforth the driver will be referred to as § 87(2)(b)). PO Klein was positioned at the rear of the car. PO Rivera obtained § 87(2)(b)’s driver’s license and registration and came back to the van. There was another male in the vehicle who this investigation has determined to be § 87(2)(b). However, § 87(2)(b) never identified himself to officers. § 87(2)(b) turned the music back to a high volume as PO Rivera walked back to the van. PO Klein told PO Rivera that he would talk to § 87(2)(b). PO Klein claimed himself to be “spokesman” for the group of officers. PO Klein approached § 87(2)(b) and said “Sir, you’re being stopped because of your music. We’re adjacent to a school. Can you show some consideration?” PO Klein also pointed out to § 87(2)(b) the other violations that could have been cited, such as his smoking vehicle and broken windshield. PO Klein never told § 87(2)(b) “Turn that shit off!” § 87(2)(b) then went in to a “cursing tirade.” PO Klein did not understand everything that § 87(2)(b) was saying because § 87(2)(b) had a strong accent and was chewing on a straw. § 87(2)(b) threw the straw right past PO Klein’s arm, immediately opened the door to the car and stepped out of the car. § 87(2)(b) was acting in a very aggressive manner and PO Klein did not feel safe. PO Klein grabbed § 87(2)(b) and turned him around. PO Klein placed § 87(2)(b) in handcuffs and used no more force than would be required to place § 87(2)(b) in handcuffs. As PO Klein was walking § 87(2)(b) back to the van § 87(2)(b) began screaming that the handcuffs were too tight. PO Klein, breaking protocol, readjusted § 87(2)(b)’s handcuffs with a second pair of handcuffs. § 87(2)(b) was placed in the back of the RMP. PO Klein stated that § 87(2)(b) was obstructing governmental administration as he was attempting to intimidate an officer from doing his work.

PO Klein returned to § 87(2)(b)’s vehicle and observed § 87(2)(b) stuffing something into his right jeans pocket. PO Klein asked § 87(2)(b) what it was that he placed into his pockets, and § 87(2)(b) replied that it was § 87(2)(b)’s wallet. PO Klein told § 87(2)(b) to step out of the car and told him that § 87(2)(b) should keep his wallet with him. PO Klein then took the wallet from § 87(2)(b) and gave it another officer. PO Klein asked § 87(2)(b) for some identification in order to fill out a stop, question and frisk report but § 87(2)(b) refused, stating that he had done nothing wrong. PO Klein filled out a “refused” UF-250 report. § 87(2)(b)’s vehicle

was then taken back to the precinct for safeguarding. However, PO Klein did not recall who drove the car back. While the vehicle was at the precinct, PO Cruger observed a black handle of a knife sticking by the console in plain-view. PO Cruger pulled out the handle and discovered it was in fact a machete of about 2 feet long. After finding the machete, PO Cruger came back into the stationhouse and told PO Klein about his discovery. There was now probable cause to search the entire vehicle. PO Klein and PO Cruger found a gravity knife in a bucket in the trunk during their search of the vehicle. There was no damage done to § 87(2)(b)'s car, including either to the seat or horn and the search was very basic as they were looking to recover other possible weapons and not narcotics.

PO Klein heard § 87(2)(b) in the cell telling the other prisoners that they should file a CCRB case every time they had any of kind of encounters with the police regardless if there were any misconduct. PO Klein recalled § 87(2)(b) referring to him as "asshole/jackass" but stated that he never told § 87(2)(b) "This jackass found a big machete." PO Klein did not recall if he told § 87(2)(b) that they had found a knife in his vehicle.

PO Klein never threatened to confiscate § 87(2)(b)'s car while interacting with him on the street. PO Klein added that § 87(2)(b)'s car was never an element of the crime and that the only reason § 87(2)(b)'s car was ultimately taken into custody was for safe keeping because § 87(2)(b) refused to provide any identification. PO Klein did not recall if § 87(2)(b) asked for his badge number. He stated that he never told § 87(2)(b) "You can take my badge number. I don't give a fuck!" PO Klein never used any type of profanity when interacting § 87(2)(b) including using the word "bullshit."

PO Jonathan Rivera

Summonses (Encl. C1-C2)

PO Rivera issued three summonses to § 87(2)(b) on June 17, 2008: summonses § 87(2)(b)

Omniforms Complaints and Arrests (Encl. C6-C9)

According to these reports, § 87(2)(b) was arrested on June 17, 2008 at approximately 12:05 PM at the southeast corner of Park Avenue and East 163rd Street for § 87(2)(b). The reports stated that § 87(2)(b) was in possession of a machete and gravity knife in a public place in plain view. The reports also added that § 87(2)(b) intentionally prohibited an officer from performing his administrative duty.

PO Rivera is a § 87(2)(b)-old Hispanic male who is § 87(2)(b) with 3 years tenure in the NYPD. He was interviewed at the CCRB on November 14, 2008 (Encl. C10-C13). On June 17, 2008, PO Rivera worked from 7:05 AM to 3:40 PM. He was assigned to the Housing Conditions Unit with PO Robert Klein. PO James Cruger and PO Robert Taylor were also in the marked van #5630. They were all dressed in uniform. PO Rivera had the following memo book entries regarding the incident (Encl. C3-C5): At 12:00 PM, a car-stop at the corner of East 163rd Street and Park Avenue. At 12:05 PM, an arrest at East 163rd Street and Park Avenue. At 12:50 PM, car was released to § 87(2)(b) ID #§ 87(2)(b) 1995 Acura 4-door Sedan, green and license plate #§ 87(2)(b)

At approximately 12:00 PM on June 16, 2008, PO Rivera, PO Klein, PO Cruger and PO Taylor were driving around in a marked van in the confines of the 44th Precinct going to the different housing locations as they were all assigned to the Housing Conditions Unit. They were traveling from the east side of precinct to the west side. At approximately 12:00 PM, the officers were in the eastern side of the precinct on East 163rd Street. PO Rivera, the driver of the van, observed a green car behind him with music playing very loudly. The

other officers also heard the music and as they drove past a school, the officers decided to make a car stop. PO Rivera pulled aside, allowing the car to drive past him. PO Rivera then turned on his lights and beeped his horn a couple of times indicating to the driver of the car to stop. PO Rivera and PO Klein exited the van and approached the vehicle. PO Cruger and PO Taylor remained in the van. PO Rivera approached the car on the driver side and PO Klein approached the passenger side. There were two males inside the car. PO Rivera asked the driver for his driver's information and explained to him the reason for the stop. He also asked the driver to turn his music off. Neither PO Klein nor PO Rivera told the driver, "Turn that shit off!" The driver, identified as the complainant, § 87(2)(b) began to protest the stop. PO Rivera explained to § 87(2)(b) that he was being stopped for his loud music and also the fact that his windshield was cracked. PO Rivera repeated his request to have § 87(2)(b)'s information. § 87(2)(b) continued protesting that he cannot be stopped for loud music. Finally, he handed over his information to PO Rivera who started back to the van with PO Klein. As the officers got back to the van, § 87(2)(b) turned the music back on. PO Klein decided to go and speak with § 87(2)(b).

Both PO Klein and PO Rivera walked back to the car. PO Klein went to the driver side and PO Rivera went to the passenger side. PO Rivera was able to see § 87(2)(b) interacting with PO Klein. § 87(2)(b) had a straw in his mouth and during the conversation he took the straw out of his mouth and threw it at PO Klein. Immediately after, § 87(2)(b) opened the car door and attempted to step out. PO Klein told § 87(2)(b) to stay in the car. However, § 87(2)(b) became irate and aggressive and continued outside of the car. PO Klein grabbed one of § 87(2)(b)'s arms and turned him around. PO Rivera came around and grabbed § 87(2)(b)'s other arm. PO Klein placed him in handcuffs and escorted him back to the van. § 87(2)(b) continued to be irate, asking why he was being arrested. PO Rivera did not recall § 87(2)(b) asking for his name or badge number. PO Rivera did not recall if § 87(2)(b) asked for this information from PO Klein. At no point did PO Rivera, PO Cruger or PO Klein state to § 87(2)(b) "You can take my badge number, I don't give a fuck!"

While he was in the van, § 87(2)(b) began complaining about the handcuffs being too tight. The officers asked § 87(2)(b) to calm down. One of the officers re-cuffed § 87(2)(b) using two pairs of handcuffs. PO Klein went back to the car and saw that the passenger, identified by this investigation as § 87(2)(b) was attempting to place something into his pocket. PO Klein asked § 87(2)(b) to step out of the vehicle and to show the officers what he had in his pocket. PO Klein frisked § 87(2)(b) and asked him to empty his pockets. § 87(2)(b) had placed § 87(2)(b)'s wallet into his pocket. PO Klein asked § 87(2)(b) for his name and identification. However, § 87(2)(b) refused to provide any information to the officers. PO Klein stated that it was okay and took down the necessary information to fill out a UF-250 report. PO Klein also asked for his identification as he was willing to release the vehicle to him if he provided a valid driver's license. However, as § 87(2)(b) did not provide any information, the officers decided to take § 87(2)(b)'s car into custody. § 87(2)(b) was allowed to leave the scene.

PO Cruger drove the car back to the 44th Precinct stationhouse while PO Rivera and the other officers drove § 87(2)(b) back to the stationhouse. While PO Rivera was filling out the pedigree information for § 87(2)(b) PO Cruger came into the stationhouse with a machete and a gravity knife stating that he recovered them from § 87(2)(b)'s car. PO Rivera never searched § 87(2)(b)'s car. PO Rivera then added additional charges of § 87(2)(b). Some point later, § 87(2)(b)'s girlfriend, § 87(2)(b) came to the stationhouse and collected § 87(2)(b)'s car.

PO James Cruger

Summons (Encl. C19)

PO Cruger issued one summons to § 87(2)(b) on June 17, 2008 for § 87(2)(b)

PO Cruger is a § 87(2)(b)-old white male who is § 87(2)(b) with 6 years tenure in the NYPD. PO Cruger was interviewed at the CCRB on April 21, 2009 (**Encl. C21-C22**). On June 17, 2008, PO Cruger worked from 7:00 AM to 3:00 PM as part of the Housing Conditions Unit. He was working with PO Robert Klein and PO Jonathan Rivera. PO Cruger did not recall if PO Robert Taylor was present during the incident. They were all dressed in uniform in a marked van. PO Cruger had no memo book entries regarding this incident (**Encl. C20**).

On June 17, 2008, at approximately 12:00 PM, PO Cruger was driving the van with PO Rivera and PO Klein when they made a car stop because the driver had his music too loud. The car was behind the van and PO Cruger pulled over, allowing the car to drive by. The car was driving by a school with its music blasting very loudly. PO Cruger put on the lights and sirens, indicating to the driver of the car to pull over in front of the van. The driver pulled over. PO Cruger approached the driver and asked him for his license and other driver's information. PO Cruger also asked § 87(2)(b) to turn down the music. PO Cruger never told § 87(2)(b) "Turn that shit down!" PO Klein and PO Rivera also exited the van and approached the vehicle. PO Cruger did not recall where PO Klein and PO Rivera were situated when they approached the car. There was another male, identified through investigation as § 87(2)(b) in the passenger seat of the car. § 87(2)(b) became agitated and irate at being stopping by the officers. PO Cruger did not recall what specifically § 87(2)(b) was saying. § 87(2)(b) provided his information to PO Cruger, who walked back to the van in order to issue § 87(2)(b) summonses. As PO Cruger was issuing the summonses, § 87(2)(b) turned up the music. PO Klein and PO Rivera went to speak with § 87(2)(b) who got out of the car in an aggressive manner and threw a straw at PO Klein. § 87(2)(b) was placed in handcuffs and taken back to the van. PO Cruger did not recall if there was any physical struggle between the officers and § 87(2)(b). PO Cruger did not recall § 87(2)(b) offering any form of resistance. PO Cruger did not recall if § 87(2)(b) asked him or the other officers for their names and/or badge numbers. PO Cruger did not recall PO Klein or PO Rivera stating to § 87(2)(b) "You can take my badge number. I don't give a fuck!"

§ 87(2)(b) did not produce a valid license to PO Klein. Therefore, the officers decided that it was best to take the car into custody. PO Cruger re-approached the car in order to drive it back to the stationhouse. However, PO Cruger first did a visual check of the vehicle and saw the handle of a machete as well as a part of the blade sticking out in the back seat. It was stuck between the gap of the back rest and the seat of the backseat. PO Cruger recovered the machete while still on the scene. PO Cruger then drove the car back to the stationhouse where he conducted another search. During this search, a gravity knife was recovered in the truck of the car. PO Cruger did not recall anything damaged during his search of the car. PO Cruger stated that he never removed or ripped the leather covering off the seats. PO Cruger stated that he never damaged the horn or steering wheel. PO Cruger did not recall if there was another officer present during the search of the vehicle. § 87(2)(b) continued being combative while at the stationhouse. PO Cruger did not recall specifically what § 87(2)(b) was saying at the stationhouse.

PO Robert Taylor

PO Taylor is a § 87(2)(b)-old black male who is § 87(2)(b). He had 7 years tenure in the NYPD when he was interviewed at the CCRB on September 26, 2008 (**Encl. C25-C26**). On the date of the incident, PO Taylor worked from 7:05 AM to 3:40 PM in the Housing Conditions Unit with PO Klein, PO Cruger and PO Rivera. They were in van #5630 and dressed in uniform. PO Taylor had the following memo book entry regarding the incident (**Encl C23-C24**): At 12:05 PM one male under arrest by PO Rivera.

At 11:00 AM on June 17, 2008, PO Taylor was riding in the backseat of the police van going southbound on Clay Avenue with PO Klein, PO Cruger and PO Rivera. PO Taylor did not remember who was driving the van. § 87(2)(b) was driving behind the police van, with loud music playing. All four officers decided to perform a car stop because they were in a school zone and the music was unnecessarily loud. The

officers allowed § 87(2)(b) to pass them before putting on the lights and siren. § 87(2)(b) pulled over at the corner of East 161st Street and Park Avenue. PO Klein, PO Cruger and PO Rivera exited the van. PO Taylor remained in the backseat of the van. PO Taylor did not recall where the officers were positioned when approaching § 87(2)(b)'s car. The van was approximately 7-10 feet away from § 87(2)(b)'s car. PO Taylor could not hear any of what was said by the officers or § 87(2)(b). As PO Klein, PO Cruger and PO Rivera walked back to the van with the documents necessary to write a summons, § 87(2)(b) turned the music in his car to a high volume again. PO Klein, PO Cruger and PO Rivera walked back to § 87(2)(b)'s car. PO Taylor did not recall where the officers were positioned. PO Taylor saw the driver's side door of § 87(2)(b)'s car open. PO Taylor exited the van to approach § 87(2)(b)'s vehicle. By the time he was halfway to § 87(2)(b)'s car, § 87(2)(b) was in handcuffs. PO Taylor did not recall which officer handcuffed § 87(2)(b). § 87(2)(b) complained that the handcuffs were too tight as he walked back to the van. An additional pair of handcuffs was placed on § 87(2)(b) to relieve the pressure. PO Taylor did not remember which officer placed the second pair of handcuffs on § 87(2)(b). § 87(2)(b)'s car was driven to the precinct but PO Taylor did not remember who drove. PO Taylor knew that a machete was found in § 87(2)(b)'s car but did not recall who performed the search. PO Taylor had no interaction with § 87(2)(b) in the van or at the stationhouse. PO Taylor did not hear any of the officers use profanity towards § 87(2)(b). PO Taylor did not hear PO Klein threaten to take § 87(2)(b)'s car away.

NYPD Documents

SPRINT (Encl. G6)

There is no SPRINT record for this incident.

Command Log: 44th Precinct (Encl. D2)

The command log showed that § 87(2)(b) was arrested at 12:05 PM by PO Rivera and brought to the stationhouse at approximately 12:10 PM. His appearance was normal and § 87(2)(b) did not request any medical attention.

Roll Call: 44th Precinct (Encl. D3-D5)

According to the Tour 2 Roll Call for June 17, 2008, PO Taylor and PO Rivera were assigned to the Housing Conditions Unit where as PO Cruger and PO Klein assigned to foot patrol until 1:00 PM, when they had court.

Property Voucher Index (Encl. D7)

Property voucher #§ 87(2)(b) showed that PO Rivera logged both a machete and knife in regards to the arrest of § 87(2)(b).

Disposition of Summonses.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

According to the Department of Motor Vehicles (DMV), summons § 87(2)(b) was dismissed on August 15, 2008 when no officer showed up in court.

Disposition of Criminal Complaint (Encl. D8-D9)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian Criminal Conviction History

§ 87(2)(g)

Civilian's Complaint History (Encl. A3)

Other than this complaint, § 87(2)(b) has filed one other complaint with the CCRB. § 87(2)(g)

§ 87(2)(b)

Subject Officers' Complaint History (Encl. A1-A2)

Neither PO Klein nor PO Rivera has any substantiated charges during their respective 4 and 3 years tenure in the NYPD. PO Cruger does not have any substantiated charges during his 6 year tenure.

Conclusions and Recommendations

Subject Officer Identification

§ 87(2)(b) stated that the officer with shield number #28772, PO Klein, spoke discourteously to him. Thus Allegation A is pleaded against him. § 87(2)(b) stated that officers searched his car and during their CCRB interviews, both PO Cruger and PO Klein stated that they searched the car. Therefore, Allegations B and C are pleaded against them. § 87(2)(b) stated that as a result of the search, the horn was damaged and the leather upholstery for the back seat was ripped. However, § 87(2)(b) did not witness the officers searching his car, the officers denied the damage and the investigation was unable to identify the officer(s) responsible for the damage. Therefore, Allegation D is pleaded against “an officer.”

Undisputed Facts

It is undisputed that on June 17, 2008, § 87(2)(b) and § 87(2)(b) were driving along Park Avenue with loud music playing from the car. PO Rivera, PO Klein and PO Cruger initiated a car stop. During the course of the interaction, § 87(2)(b) took a straw that he had in his mouth and threw it in the direction of PO Klein, who was speaking with him at the time. § 87(2)(b) then immediately proceeded to exit the car. He was then placed in handcuffs by PO Klein and arrested for § 87(2)(b). PO Cruger and PO Klein searched § 87(2)(b)'s car and found a machete and a knife.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that PO Klein told him, “Turn that shit off” in order to have him turn off the music. § 87(2)(b) also stated that as the interaction continued, he looked at PO Klein’s badge in order to note the number. However, as he was doing so, PO Klein stated to him, “You can take my badge number. I don’t give a fuck.” PO Klein denied making such a statement to § 87(2)(b) and both PO Rivera and PO Cruger stated that they never heard PO Klein speak discourteously to § 87(2)(b). From § 87(2)(b)'s statement, these were the only instances that PO Klein or any other officer spoke discourteously to him. It seems unlikely that PO Klein would be discourteous to § 87(2)(b) at either of these points when subsequent to these alleged discourtesies, § 87(2)(b) threw a straw that was in his mouth at PO Klein and there is no allegation of any profanity at that point. However, without independent witnesses and corroborating evidence, the CCRB is unable to come to a determination regarding this allegation.

§ 87(2)(b) alleged that officers searched his car and that the charges against him for possession of weapons were fabricated charges. However, he was not being truthful on the matter as he stated that there was no machete in his car. § 87(2)(b)'s girlfriend, § 87(2)(b) stated that the officers showed

her the machete that they recovered from the car when she arrived at the stationhouse. All of the officers stated that there was a machete in § 87(2)(b)'s car. PO Cruger and PO Klein stated that this machete was in plain-view and was seen after a legitimate car stop was effected. PO Cruger, the officer who recovered the machete, stated that he noticed the handle of the machete sticking out from the back seat and as he went to pull it out, realized that it was a machete. According to the officers, it was never their intention to search § 87(2)(b)'s car. The only reason they had any contact with the car after the car stop was the fact that § 87(2)(b) refused to provide any identification, including a driver's license, which would have allowed the officers to release § 87(2)(b)'s car to him. They were therefore forced to safeguard the car as § 87(2)(b) was being arrested. It was only when PO Cruger went into the car to drive it back to the stationhouse did he notice the machete.

§ 87(2)(b) believed that the officers searched his car in an attempt to add fraudulent charges to his arrest as they did not have any initial charge to plead against him. From § 87(2)(b)'s own account of the situation, he was guilty of obstructing governmental administration. He acknowledged that he had already given PO Cruger his information and then PO Rivera explained to him that he was being stopped for the loud music. Yet even after interaction with two officers, the loud music was still an issue prompting a third officer, PO Klein to have to still discuss the matter with § 87(2)(b). When § 87(2)(b) alleged that PO Klein told him, "Turn that shit off," it is indicating that he still had not turn off the music or as all the officers stated, § 87(2)(b) turned back on the loud music. It was while PO Klein was trying to carry out his duty, that § 87(2)(b) threw a straw that he had in his mouth at him and got out of the car despite PO Klein asking him to stay inside. PO Klein corroborated § 87(2)(b)'s account, adding that § 87(2)(b) was unnecessarily aggressive through out the incident. Therefore, it is unlikely that PO Cruger and PO Klein maliciously searched § 87(2)(b)'s car. § 87(2)(b) denying that he even had a machete makes it seem probable that he knew that the machete was in plain view and only admitted to having the knife in trunk as it was not in plain view could only have been found in the trunk has searched. PO Cruger stated that the only reason why an actual search of the car was conducted was because he had probable cause to do so with the discovery of the machete.

In regards to the alleged damage to § 87(2)(b)'s car, neither PO Cruger nor PO Klein, officers who stated that they searched the car, admitted to any damage. They both stated that they left the car unscathed. § 87(2)(b) never provided any documentation of the damage to the CCRB. § 87(2)(b) was not present for the search and was unable to identify which officers searched the car, or caused any possible damage. Therefore, the CCRB was unable to identify which of the officers may have been responsible.

Allegations Not Pleaded

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Allegation A: PO Robert Klein spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO Klein told him, “You can take my badge number. I don’t give a fuck.” However, PO Klein denied ever speaking to § 87(2)(b) in this manner. PO Cruger and PO Rivera denied hearing PO Klein speak discourteously to § 87(2)(b) § 87(2)(g)

Therefore, it is recommended that Allegation A be closed as *Unsubstantiated*.

Allegation B: PO James Cruger searched the car in which § 87(2)(b) ***was an occupant.***

Allegation C: PO Robert Klein searched the car in which § 87(2)(b) ***was an occupant.***

According to New York Search and Seizure §5.05[2] “the police may search a vehicle and any containers found inside when they have probable cause to believe that it contains contraband, a weapon, or evidence of a crime.” The statute goes on to say that probable cause is not dependent upon an arrest as an officer can “observe evidence of criminality that supplies probable cause to search the vehicle.” § 87(2)(g)

Therefore, it is recommended that Allegations B and C be closed as *Exonerated*.

Allegation D: An officer damaged § 87(2)(b) ***car.***

§ 87(2)(b) alleged that during the search of his car, the leather upholstery on the back seat of the car was damaged and the horn on the left side was damaged. However, § 87(2)(b) was not present for the search and thus could not identify which officer or officers were for the alleged damage. Both PO Cruger and PO Klein denied damaging § 87(2)(b) s car. § 87(2)(g)

Therefore, it is recommended that Allegation D be closed as *Officer(s) Unidentified*.

Investigator:
Cordell Hackshaw
Supervisor:
Sarah E. Turner
Reviewed by:
Benjamin Roth
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Date:
Date:
Date: